

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
EMMERICIA HINDS JOSEPH, EYANNA HINDS JOSEPH,
and EVERSON HINDS JOSEPH,

Plaintiffs,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, P.O. JESSE T. HARD
(tax id #967102, 67th Precinct), and JENNIFER
DEBRA “DEBBIE” SERRANT

Defendants.
-----X

Index No.:

Date Purchased:

Plaintiff designates
KINGS County as the
place of trial.

The basis of the venue is
situs of occurrence

SUMMONS

TO THE ABOVE-NAMED DEFENDANTS:

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff’s Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
September 9, 2024

Antin, Ehrlich & Epstein, LLP.
Attorneys for Plaintiff
49 West 37th Street - 7th Floor
New York, New York 10018
(212) 221-5999

By: /s/JSA
Jeff S. Antin

TO: **The City of New York**
100 Church Street
New York, New York 10007

P.O. JESSE T. HARD
(tax id #967102, 67th Precinct)
2820 Snyder Ave,
Brooklyn, New York 11226

JENNIFER DEBRA “DEBBIE”
SERRANT
201 Linden Boulevard, Apt F15
Brooklyn, New York 11226

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
EMMERICIA HINDS JOSEPH, EYANNA HINDS JOSEPH,
and EVERSON HINDS JOSEPH,

Index No.

Plaintiffs,

COMPLAINT

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, P.O. JESSE T. HARD
(tax id #967102, 67th Precinct), and JENNIFER
DEBRA “DEBBIE” SERRANT

Defendants.

-----X

Plaintiffs, complaining of the Defendants herein by their attorneys, Antin, Ehrlich & Epstein, LLP, respectfully set forth and allege, upon information and belief, as follows:

1. Plaintiffs, EMMERICIA HINDS JOSEPH, EYANNA HINDS JOSEPH, and EVERSON HINDS JOSEPH (hereinafter collectively referred to as “HINDS SIBLINGS”, or individually by their respective first names), were residents of Kings County, City and State of New York at the time of this occurrence.

2. At all times herein mentioned, the defendant, THE CITY OF NEW YORK (hereinafter “CITY”), was and still is a municipality organized and existing under and by virtues of the laws of the State of New York.

3. At all times herein mentioned, the defendant, THE NEW YORK CITY POLICE DEPARTMENT (herein after referred to as “NYPD”), was and still is an agency of defendant CITY duly organized and existing under and by virtue of the Laws of the State of New York.

4. Upon information and belief, defendant P.O. JESSE T. HARD (tax id #967102, was at all times relevant to this action an officer with the NYPD assigned to the 67th Precinct (hereinafter P.O. HARD). All actions by P.O. HARD complained of herein were taken in the

course and scope of his employment and under color of law. P.O. HARD is being sued in both his individual and official capacities.

5. Upon information and belief, that at all times herein mentioned, defendant, P.O. HARD, was an agent, servant and/or employee of defendant CITY.

6. Upon information and belief, that at all times herein mentioned, defendant, P.O. HARD, was an agent, servant and/or employee of defendant CITY and under the direct command of the "NYPD".

7. Upon information and belief, that at all times herein mentioned, defendant, JENNIFER DEBRA "DEBBIE" SERRANT (hereinafter "DEBBIE") was a resident of Kings County, City and State New York at the time of this occurrence.

8. Upon information and belief, that at all times herein mentioned, defendant DEBBIE was an occupant of apartment 15-F, located at 201 Linden Boulevard, Brooklyn, New York 11226.

9. Upon information and belief, that at all times herein mentioned, defendant DEBBIE was in possession of a firearm(s), the same firearm(s) that plaintiffs were later subsequently unlawfully detained and criminally charged with possessing.

10. Upon information and belief, that at all times herein mentioned, defendant DEBBIE, without any probable cause, justification, privilege, good reason, and/or immunity (good faith or otherwise) falsely reported plaintiffs HINDS SIBLINGS for criminal possession of an unlicensed firearm to agents, officers and/or detectives of the 67th precinct of the New York City Police Department, and this false report caused the police to arrest the plaintiffs and falsely charge plaintiffs HINDS SIBLINGS, subsequently, inter alia, with criminal possession of a weapon under N.Y.S. Penal Law 265.101B.

11. At all times herein mentioned, the defendant NYPD, and specifically defendant P.O. HARD, arrested plaintiffs HINDS SIBLINGS, for criminal possession of unlicensed

firearm(s) when defendant DEBBIE had previously acknowledged possession of said firearm(s).

12. Any allegation in support of the charges, prosecution and/or arraignment, or allegation that a crime had been committed by plaintiffs HINDS SIBLINGS constituted, among other things, fraud, perjury, and/or a knowing, intentional, reckless and/or negligent omission of material fact.

13. Defendant, DEBBIE, played an active role in the false arrest and prosecution of plaintiffs HINDS SIBLINGS, such as giving false information, encouragement and/or importuning the authorities to act.

14. Defendants are not entitled to any immunity(ies), qualified or otherwise.

15. At all times herein mentioned, plaintiff duly served a Notice of Claim thereupon on the defendants CITY and NYPD on September 7, 2023, within the time prescribed by law, and its receipt has been acknowledged by letter dated September 15, 2023. (a copy of the Notice of Claim served, along with the receipt acknowledgement letter, are annexed hereto as **Exhibit "A"** and made a part hereof).

16. That defendant, CITY, has neglected and refused to make an adjustment in payment thereof within more than thirty (30) days after service of said Notice of Claim.

17. That defendant, NYPD, has neglected and refused to make an adjustment in payment thereof within more than thirty (30) days after service of said Notice of Claim.

18. That on March 22, 2024, pursuant to General Municipal Law Section 50(h) hearings were held on behalf of defendant CITY for all Plaintiffs.

19. That the instant action is being commenced within one year and ninety days from the date of incident of June 11, 2023.

20. That the plaintiffs have duly complied with all statutes and laws applicable to the defendants, precedent to the making of this claim and bringing this action.

21. That on, or about, June 11, 2023, at approximately 9:30 p.m., plaintiffs requested the assistance of NYPD at the address of 201 Linden Boulevard, Apartment F15, Brooklyn, New York 11226.

22. That on or about June 11, 2023 at approximately 9:30 p.m., officers of defendant NYPD, falsely arrested, detained and transported all plaintiffs against their will and consent to the confines of the New York City police precinct known as, and designated as, the 67th police precinct, and thereafter to Central Booking, again against their will and consent.

23. That sometime in late fall of 2023, the New York County District Attorney's Office declined to prosecute charges against the plaintiff, specifically N.Y.S. Penal Law 265.101B.

24. That the arrests of plaintiffs were not supported by any evidence that a crime had been committed by them.

25. By arresting plaintiff without legal authority on June 11, 2023 based on false allegations, defendants violated plaintiff's rights under the Fourth and Fourteenth Amendments to the United States constitution.

26. Defendants or their agents, servants and/or employees are liable to plaintiffs under the principles of *respondeat superior*.

27. Plaintiffs were injured as set forth herein without any negligence or culpable conduct on the part of the plaintiffs contributing thereto.

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
ALL PLAINTIFFS AGAINST ALL DEFENDANTS
(CIVIL AND CONSTITUTIONAL RIGHTS)

28. Plaintiffs HINDS SIBLINGS repeat, reiterate and re-allege each and every allegation contained in paragraphs "1" – "27" above as if the same were more fully re-alleged herein at length.

29. The actions of defendants, their agents, servants, officers and/or employees, caused the plaintiffs to be deprived of their fundamental rights under the Constitution and laws of the United State including but not limited to, the guarantee against unreasonable searches and seizures secured by the Fourth and Fourteenth Amendments; the right not to be deprived of liberty or property or be arrested, detained or imprisoned without probable cause under the Fourth, Fifth and Fourteenth Amendment of the Constitution of the United States and the right not to be arrested, prosecuted, indicted or detained upon false testimony and/or evidence in violation of the Due Process Clauses of the Fifth and Fourteenth Amendments.

30. Throughout the events set forth above, defendants, their officers, agents, servants and/or employees, acted with actual malice toward the plaintiff, with utter and deliberate indifference to and disregard for the plaintiff's rights under the Constitution and laws of the United States and the State of New York, and without probable or reasonable cause to believe that the plaintiff had engaged in or was about to engage in any criminal or wrongful activity.

31. The foregoing violations of the plaintiffs' rights constituted Constitutional torts and were affected by actions taken under color of law, and within the scope of authority.

32. By reason of the foregoing, defendants are liable to plaintiff pursuant to 42 U.S.C. § 1983.

33. That at all relevant times, plaintiffs HINDS SIBLINGS were conscious of their arrest and confinement as aforesaid and did not consent to same.

34. That the arrest and confinement of plaintiffs HINDS SIBLINGS was not otherwise privileged or supported by probable cause.

35. By reason of the foregoing, plaintiffs, HINDS SIBLINGS have been damaged, and hereby make claim for compensatory, punitive, exemplary and/or other damages in amounts

that exceed the jurisdictional limits of any court that would otherwise have jurisdiction over this matter.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF
ALL PLAINTIFFS AGAINST ALL DEFENDANTS
(§1983 FALSE ARREST)

36. Plaintiffs HINDS SIBLINGS repeat, reiterate and re-allege each and every allegation contained in paragraphs "1" – "35" above as if the same were more fully re-alleged herein at length.

37. As a consequence of the unlawful and wrongful conduct to which the plaintiffs HINDS SIBLINGS were subjected, the plaintiffs (a) suffered false imprisonment; (b) was verbally abused and intimidated, and harassed; (c) was subjected to degrading, dehumanizing and emotionally destructive condition; (d) was publicly shamed, disgraced, ridiculed and humiliated; (e) suffered and continues to suffer still from mental pain and anguish, public humiliation and embarrassment and other items of attendant damages; (f) suffered emotional distress and psychological trauma; (g) suffered injuries to their reputation; and (h) were deprived of their civil rights as well as their State and Federal constitutional rights.

38. Defendants, their officers, agents, servants and/or employees stopped, seized and detained the Plaintiffs HINDS SIBLINGS, with the conscious objective of causing the plaintiffs HINDS SIBLINGS' arrest, detention and imprisonment as well as charges being filed against the plaintiffs, through the intentional use of false, misleading and unreliable evidence and testimony, through deliberate indifference to whether the evidence and testimony was false, misleading or unreliable, and/or through careless, reckless, grossly negligent or negligent investigative conduct.

39. As a result of the aforementioned conduct, and the complaints made were based on false, misleading and unreliable testimony and/or evidence, defendant, its agents, servants,

officers and/or employees were the cause of the plaintiffs HINDS SIBLINGS' wrongful detention, booking, prosecution and resultant damages.

40. But for the false, misleading and unreliable evidence and testimony provided and the other acts of misconduct by defendant as set forth above, plaintiffs HINDS SIBLINGS would not have been detained, charged, prosecuted or imprisoned and would not have suffered their losses and damages.

41. By virtue of the foregoing, defendant, its officers, agents, servants and/or employees initiated, or caused the initiation and/or continuation of, criminal proceedings against plaintiffs HINDS SIBLINGS .

42. The criminal proceedings instituted and contained against the plaintiff was wholly without legal or probable cause, were instituted and continued with malice, and were terminated in favor of the plaintiff.

43. By virtue of the foregoing one or more of the defendants are liable for the false arrest of plaintiffs HINDS SIBLINGS and all resultant damages.

44. That at all relevant times, plaintiffs HINDS SIBLINGS were conscious of their arrest and confinement as aforesaid and did not consent to same.

45. That the arrest and confinement of plaintiffs HINDS SIBLINGS was not otherwise privileged or supported by probable cause.

46. By reason of the foregoing, plaintiffs HINDS SIBLINGS have been damaged, and hereby make claim for compensatory, punitive, exemplary and/or other damages in amounts that exceed the jurisdictional limits of any court that would otherwise have jurisdiction over this matter. Plaintiffs HINDS SIBLINGS, hereby make claims for statutory attorney's fees and disbursements pursuant to 42 U.S.C. §1988.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF
ALL PLAINTIFFS AGAINST ALL DEFENDANTS
(FALSE ARREST)

47. Plaintiffs HINDS SIBLINGS repeat, reiterate and re-allege each and every allegation contained in paragraphs “1” – “46” above as if the same were more fully re-alleged herein at length.

48. By virtue of the foregoing one or more of the defendants are liable for the false arrest of the plaintiffs HINDS SIBLINGS, and all resultant damages.

49. That at all relevant times, the plaintiffs HINDS SIBLINGS was conscious of his arrest and confinement as aforesaid and did not consent to same.

50. That the arrest and confinement of the plaintiffs HINDS SIBLINGS was not otherwise privileged or supported by probable cause.

51. By reason of the foregoing, plaintiff has been damaged, and hereby makes claim for compensatory, punitive, exemplary and/or other damages in amounts that exceed the jurisdictional limits of any court that would otherwise have jurisdiction over this matter.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF
ALL PLAINTIFFS AGAINST ALL DEFENDANTS
(FALSE IMPRISONMENT)

52. Plaintiffs HINDS SIBLINGS repeat, reiterate and re-allege each and every allegation contained in paragraphs “1” - “51” above as if the same were more fully re-alleged herein at length.

53. By virtue of the foregoing, defendants are liable to plaintiffs HINDS SIBLINGS for the false imprisonment of these plaintiffs, and all resultant damages.

54. At all relevant times, plaintiffs HINDS SIBLINGS were conscious of the confinement and/or imprisonment and did not consent to same.

55. The confinement and/or imprisonment of plaintiffs HINDS SIBLINGS was not otherwise privileged, was against plaintiffs' will and consent, and was not supported by justifiable or probable cause.

56. That the defendants by virtue of the foregoing conduct, did falsely imprison plaintiffs and/or cause plaintiffs HINDS SIBLINGS to be falsely imprisoned.

57. By reason of the foregoing, plaintiffs HINDS SIBLINGS have been damaged, and hereby make claims for compensatory, punitive, exemplary and/or other damages in amounts that exceed the jurisdictional limits of any court that would otherwise have jurisdiction over this matter.

AS AND FOR AN FIFTH CAUSE OF ACTION ON BEHALF OF
ALL PLAINTIFFS AGAINST ALL DEFENDANTS
(INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS)

58. Plaintiffs HINDS SIBLINGS repeat, reiterate and re-allege each and every allegation contained in paragraphs "1" - "57" above as if the same were more fully re-alleged herein at length.

59. The wrongful actions of one or more of the Defendants, in having plaintiffs HINDS SIBLINGS falsely arrested and imprisoned, were extreme and outrageous.

60. The conduct of one or more of the Defendants, as alleged herein, disregarded a substantial probability of causing severe emotional distress.

61. Through these actions, one or more of the defendants intentionally caused Plaintiffs HINDS SIBLINGS severe emotional distress as described above.

62. By reason of the foregoing, plaintiffs HINDS SIBLINGS have been damaged, and hereby makes claim for compensatory, punitive, exemplary and/or other damages in amounts that exceed the jurisdictional limits of any court that would otherwise have jurisdiction over this matter.

AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF
ALL PLAINTIFFS AGAINST ALL DEFENDANTS
(PRIMA FACIE TORT)

63. Plaintiffs repeat, reiterate and re-allege each and every allegation contained in paragraphs "1" - "62" above as if the same were more fully re-alleged herein at length.

64. That defendants intentionally inflicted harm upon plaintiffs HINDS SIBLINGS which resulted in special damages.

65. That defendants' conduct, by their acts or series of acts, even if otherwise lawful, was without any excuse or justification.

66. That defendants, by virtue of the foregoing conduct, did commit a prima facie tort upon Plaintiffs HINDS SIBLINGS.

67. By reason of the foregoing, plaintiffs HINDS SIBLINGS have been damaged, and hereby make claim for compensatory, punitive, exemplary and/or other damages in amounts that exceed the jurisdictional limits of any court that would otherwise have jurisdiction over this matter.

AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF OF
ALL PLAINTIFFS AGAINST ALL DEFENDANTS
(WILLFUL MISCONDUCT, NEGLIGENCE AND GROSS NEGLIGENCE)

68. Plaintiffs repeat, reiterate and re-allege each and every allegation contained in paragraphs "1" - "67" above as if the same were more fully re-alleged herein at length.

69. That Defendants owed a duty(ies) of care to plaintiffs HINDS SIBLINGS including the duty to cause no harm to said plaintiffs.

70. That defendants, by virtue of the foregoing conduct, failed to exercise their duty(ies) owed to plaintiffs HINDS SIBLINGS in a proper and non-negligent manner and with the level of care that a reasonable and prudent person would have exercised under the circumstances.

71. That defendants' conduct was so grossly negligent, reckless and/or careless as to show complete disregard for the rights and safety of others.

72. As a result of the foregoing, plaintiffs HINDS SIBLINGS were injured as hereinbefore alleged without any negligence or culpable conduct on the part of the plaintiffs HINDS SIBLINGS contributing thereto.

73. That defendants committed the foregoing acts notwithstanding the fact that plaintiffs HINDS SIBLINGS, have not committed a crime.

74. That the conduct of defendants resulted in plaintiffs HINDS SIBLINGS's wrongful detention, booking and resultant damages.

75. That defendants knew or should have known that plaintiffs HINDS SIBLINGS have not committed a crime.

76. That defendants' conduct was committed without probable cause, or reasonable cause to believe that plaintiffs HINDS SIBLINGS have engaged in any criminal activity.

77. That defendants' conduct was objectively unreasonable and was undertaken intentionally with willful indifference to plaintiffs HINDS SIBLINGS' constitutional rights.

78. That defendants acted with deliberate indifference to whether the allegations were false, baseless and/or through careless, reckless and grossly negligent disregard to the veracity of the allegations with the conscious objective of causing plaintiffs HINDS SIBLINGS's arrest, detention and imprisonment, as well as charges being filed against plaintiffs HINDS SIBLINGS, through the intentional use of false, baseless, malicious, spiteful, and bad faith accusations.

79. By virtue of the foregoing, defendants initiated, or caused the initiation and/or continuation of, criminal proceedings against the plaintiffs that resolved in plaintiffs HINDS SIBLINGS's favor, and consistent with innocence of the accused.

80. By reason of the foregoing, plaintiffs HINDS SIBLINGS have been damaged, and hereby make claim for compensatory, punitive, exemplary and/or other damages in amounts that exceed the jurisdictional limits of any court that would otherwise have jurisdiction over this matter.

AS AND FOR AN EIGHTH CAUSE OF ACTION ON BEHALF OF
ALL PLAINTIFFS AGAINST ALL DEFENDANTS
(BATTERY)

81. Plaintiffs repeat, reiterate and re-allege each and every allegation contained in paragraphs "1" - "80" above as if the same were more fully re-alleged herein at length.

82. That at the above time and place the defendants, intentionally struck and/or pushed the plaintiffs about their head and body and caused the injuries herein alleged.

83. That by reason of the foregoing, plaintiffs sustained, serious, severe, permanent and protracted injuries, suffered great physical pain and mental anguish; were rendered sick, sore, lame and disabled and continue so to be; was permanently injured and was and will continue to be compelled to undergo medical expenses and medical care treatment; was, and is upon information and belief and will hereafter be incapacitated from her usual lifestyle and occupation; and was otherwise damaged.

84. That as a result of the foregoing, plaintiffs have been damaged in the sum that exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction plus punitive damages.

AS AND FOR A NINTH CAUSE OF ACTION ON BEHALF OF
ALL PLAINTIFFS AGAINST ALL DEFENDANTS
(MALICIOUS PROSECUTION)

85. Plaintiffs repeat, reiterate and re-allege each and every allegation contained in paragraphs "1" - "84" above as if the same were more fully re-alleged herein at length.

86. By virtue of the foregoing, defendants are liable to plaintiffs for the malicious prosecution of the plaintiffs.

87. That defendants caused plaintiffs to be seized and detained, and bought charges against plaintiffs with the conscious objective of causing plaintiffs' detention and imprisonment

as well as convictions on unsupported charges through the intentional use of false, misleading and/or perjured evidence or testimony, through deliberate indifference to whether the charges, allegations, evidence and/or testimony were false, misleading or perjured and/or through careless, reckless, grossly negligent or negligent conduct.

88. As a result, defendants, and their actions, were the direct and proximate cause of plaintiffs' wrongful arrest, detention, prosecution, and resultant damages.

89. But for the false, misleading and/or perjured evidence/testimony provided to the New York Police Department, the New York County District Attorney, other public officials, and/or the aforesaid Criminal Court, and/or the other acts of misconduct by defendants as set forth above, plaintiffs would not have been arrested, detained, charged, prosecuted, or imprisoned and plaintiffs would have not suffered their losses and damages.

90. By virtue of the foregoing, defendants initiated, or caused the initiation of, false criminal proceedings against Plaintiff in a court of law and did so with malice.

91. The criminal proceedings instituted and continued against plaintiffs were wholly without legal or probable cause, were instituted and continued with malice and were terminated in favor of the Plaintiff.

92. By reason of the foregoing, plaintiffs have been damaged, and hereby make claim for compensatory, punitive, exemplary and/or other damages in the amounts that exceed the jurisdictional limits of any court that would otherwise have jurisdiction over this matter.

WHEREFORE, the plaintiffs, EMMERICIA HINDS JOSEPH, EYANNA HINDS JOSEPH, and EVERSON HINDS JOSEPH, demand judgment against the Defendants on each and every cause of action in the sums above mentioned, all together with the costs and disbursements of this action and statutory attorney's fees and disbursements pursuant to 42 U.S.C. §1988.

Dated: New York, New York
September 9, 2024

Antin, Ehrlich & Epstein, LLP
Attorneys for Plaintiff
49 West 37th Street - 7th Floor
New York, New York 10018
(212) 221-5999

By: /s/ JSA
Jeff S. Antin

EXHIBIT A

NOTICE OF CLAIM

In the Matter of the Claim of

**EMMERICIA HINDS JOSEPH,
EVERSON HINDS JOSEPH, and
EYANNA HINDS JOSEPH,**

Claimants,

-against-

**THE CITY OF NEW YORK
(THE NEW YORK CITY POLICE DEPARTMENT),**

Respondent.

TO:

**Hon. Sylvia Hinds-Radix
Corporation Counsel
The City of New York
100 Church Street
New York, New York 10007**

1. The name and post-office address of each Claimant and Claimant's attorney is:

**EMMERICIA HINDS JOSEPH
189 Buffalo Avenue
Brooklyn, New York 11213**

**ANTIN, EHRLICH & EPSTEIN, LLP
49 West 37th Street, 7th Floor
New York, New York 10018
(212) 221-5999**

**EVERSON HINDS JOSEPH
189 Buffalo Avenue
Brooklyn, New York 11213**

**EYANNA HINDS JOSEPH
189 Buffalo Avenue
Brooklyn, New York 11213**

2. The nature of the claims:

Monetary damages for violation of Claimants' civil rights, serious personal injuries with conscious pain and suffering, emotional distress, posttraumatic stress syndrome, loss of liberty, lost earnings, loss of employment, medical and other related expenses, false arrest, false imprisonment, malicious prosecution, lack of/no probable cause to arrest, negligent infliction of emotional distress, intentional infliction of emotional distress, negligence, gross negligence, municipal liability, libel, slander, prima facie tort, violation of rights protected under the United States Constitution, and the Constitution of the State of New York, violation of civil rights under 42 USC Section 1983, sustained by Claimants **EMMERICIA HINDS JOSEPH, EVERSON HINDS JOSEPH and EYANNA HINDS JOSEPH**, along with attorney's fees, all due to the intentional and/or negligent acts/omissions of the Respondent, its agents, servants, and/or employees herein. The Respondent is also liable to the Claimants as a result of its negligence in the hiring, training, supervision and/or retention of its employees and/or pursuant to the doctrine of respondeat superior.

3. The time when, the place where and the manner in which the claim arose:

The claim arose on June 11, 2023, when Claimants while lawfully present at their residence that was left to them by their deceased grandfather, an unlawful coresident of their apartment falsely reported to the police that a firearm that was found in the apartment belonged to them. The Claimants were the ones who signaled the presence of the firearm in the apartment to the police. Moreover, a video exists of the unlawful coresident of the apartment informing police officers that she actually had firearms in the apartment after a prior interaction earlier that day with the police officers who were at the same apartment. During that prior interaction and after the unlawful coresident admitted ownership of the firearms, on video, the police officers failed to ascertain ownership of the weapons, failed to conduct any investigation and proceeded to put all three claimants under arrest. The Claimants were all taken to the 67th Precinct and they were falsely arrested and handcuffed. All or some of the Claimants experienced job loss as a result of this wrongful arrest. Claimants were detained for an excessive amount of time and suffered mental anguish, fear, anxiety, shame among other damages to be further established. Claimants were falsely accused of weapon possession. A video captured from an earlier incident at the Claimants' residence recorded a clear statement by Claimants' unlawful coresident where she admits to being in possession of two firearms in the apartment. Claimants were falsely arrested and detained for an unreasonable amount of time. As a result of the occurrence Claimants were left in a state of confusion, were disoriented, panicked and fearful. Claimants were kept in a holding cell for a period exceeding five (5) hours. Such false allegations caused Claimants to have been falsely arrested by agents, servants and/or employees of the Respondent. Claimants' civil rights were further violated and Claimants suffered further injury, humiliation and psychological damage as a result of the false and malicious prosecution pursued by the Respondent, its agents, servants and/or employees.

All of the Claimants injuries which include but are not limited to, mental anguish and despair were caused by the negligence of the Respondent, its agents, servants and/or employees herein, in the hiring, management, supervision, training, operation control of their employees.

4. The items of damage or injuries claimed are:

Monetary damages for the intentional and negligent violation of Claimants constitutional and statutory rights, for the intentional and negligent violation of Claimants civil rights, for the infliction of emotional distress on Claimants **EMMERICIA HINDS JOSEPH, EVERSON HINDS JOSEPH and EYANNA HINDS JOSEPH**, for the false arrest of the Claimants, for the malicious prosecution of the Claimants, lack of/no probable cause and for related expenses, including attorney's fees, sustained by the Claimants, along with loss of liberty, posttraumatic stress syndrome, loss of earnings, loss of employment, medical expenses, and conscious pain and suffering and other related expenses and emotional distress, sustained by Claimants.

TOTAL AMOUNT CLAIMED ONE MILLION AND 00/100 (\$1,000,000.00) DOLLARS for each Claimant.

The undersigned therefore present this claim for adjustment and payment. You are hereby notified that unless it is adjusted and paid within the time provided by law from the date of presentation to you, the claimant intends to commence an action on this claim.

Dated: New York, New York
September 7, 2023


ANTIN, EHRLICH & EPSTEIN, LLP

By: _____

Jeffrey S. Antin
Attorneys for Claimants
49 West 37th Street, 7th Floor
New York, New York 10018
(212) 221-5999

ATTORNEY AFFIDAVIT

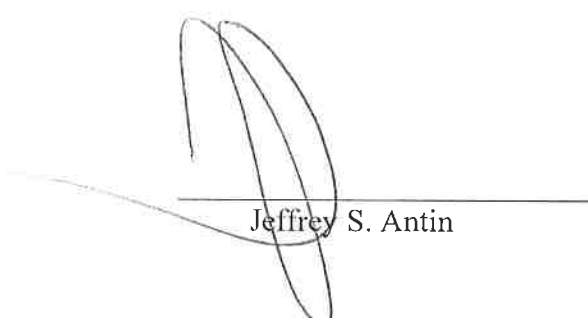
STATE OF NEW YORK)
): ss
COUNTY OF NEW YORK)

I, Jeffrey S. Antin, being duly sworn, deposes and says:

I am a Partner with the firm of **ANTIN, EHRLICH & EPSTEIN, LLP**, the attorneys of record for the Claimant;

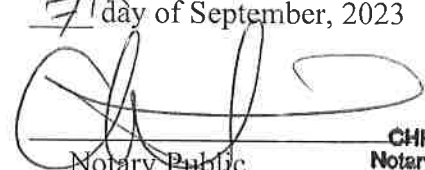
I have read the annexed **NOTICE OF CLAIM** and know the contents thereof and the same are true to my knowledge, except those matters therein which are stated to be alleged on information and belief, and as to those matters, I believe them to be true. My belief, as to those matters therein not stated upon knowledge is based upon the following:

Interviews and/or discussions with the Claimants, investigation papers and/or documents that are in the file.



Jeffrey S. Antin

Sworn to me before this
7th day of September, 2023



Notary Public

CHRISTIAN THOMAS GRIM
Notary Public, State of New York
No. 02GR8243220
Qualified in Nassau County
My Commission Expires June 20, 2027

In the Matter of

**EMMERICIA HINDS JOSEPH,
EVERSON HINDS JOSEPH and
EYANNA HINDS JOSEPH,**

Claimants,

-against-

**THE CITY OF NEW YORK
(THE NEW YORK CITY POLICE DEPARTMENT),**

Respondent.

NOTICE OF CLAIM

ANTIN, EHRLICH & EPSTEIN, LLP
Attorneys for Claimants
49 West 37th Street, 7th Floor
New York, New York 10018
(212) 221-5999

Judine Valery

From: ServiceECF (Law) <ServiceECF@law.nyc.gov>
Sent: September 7, 2023 5:42 PM
To: Judine Valery
Subject: Proof of service receipt

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This email confirms receipt of email and constitutes proof of service at the Office of the Corporation Counsel for the City of New York. Please retain it for your records. Please note that the Office of the Corporation Counsel has accepted service only for the City of New York and entities for which the Law Department is authorized to accept service, including the Mayor and City Agency Heads named in their official capacities. Service of process on any individually named parties has not been accepted.

Documents must be submitted as attachments; linked documents will not be accessed and will not be considered as proper service on the New York City Law Department. All documents submitted after 5:00PM will be considered served on the next business day.

Please be reminded that the Law Department Service Window remains open to accept service of papers on Tuesdays and Thursdays from 9:00 am until 5:00 pm.

Service of process on individuals should continue to proceed in a manner required by applicable law.

This mailbox is only monitored for service. Please call (212) 356-1140 with any questions or concerns.



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THE CITY OF NEW YORK
OFFICE OF THE COMPTROLLER
CLAIMS AND ADJUDICATIONS
1 CENTRE STREET ROOM 1200
NEW YORK, N.Y. 10007-2341

Brad Lander
COMPTROLLER

Date: 9/15/2023
Claim Number: 2023PI030174
RE: Acknowledgment of Claim
Your Claim/Policy#:

EMMERICA HINDS JOSEPH c/o ANTIN EHRLICH & EPSTEIN
49 WEST 37 ST 7 FLOOR
NEW YORK NY 10018

Dear Claimant:

We acknowledge receipt of your claim, which has been assigned the claim number shown above. Please refer to this claim number in any correspondence or inquiry you may have with our office.

We will do our best to investigate and, if possible, settle your claim. However, if we are unable to resolve your claim, **any lawsuit against the City must be started within one year and ninety days from the date of the occurrence.**

If you have any questions regarding your claim, you may contact us at 212-669-4729 for claims involving personal injury.

If you need to communicate in a language other than English, please let us know, and we will make translation services available to you.

Sincerely,

Bureau of Law & Adjustment